

Messrs. J. A. Lauderdale and Wm. H. Watkins, Assistant Attorneys General of Mississippi, with whom *Mr. Greek L. Rice*, Attorney General, was on the brief, for appellants.

There is no equity on the face of the bill, because plaintiff had a plain, speedy, complete and adequate remedy at law, and because there is no probability of a multiplicity of suits.

There is no equity jurisdiction. The amount in controversy does not exceed \$3,000.00. A federal court of equity has no jurisdiction to prevent the deprivation of a political right. *Ex parte Sawyer*, 124 U. S. 200; *Cleveland Cliff Iron Co. v. Kinney*, 262 Fed. 980; *Angelus v. Sullivan*, 246 Fed. 54, citing many other cases; *Taylor v. Kerchevak*, 82 Fed. 497; *Anthony v. Burrow*, 129 Fed. 783; *Ohio v. Hildebrandt*, 231 U. S. 565; 9 R. C. L. 987, § 10; 10 R. C. L. 342, § 92; 14 R. C. L. 375, § 77.

Sub-section 15 of § 24, Judicial Code, gives the federal courts jurisdiction to try the title to certain offices. However, members of Congress are especially excepted therefrom and the denial of the right to vote must be on account of race, color or previous condition of servitude. This section gives the court jurisdiction where certain political rights are involved. To give jurisdiction therein is to exclude jurisdiction in any other matters.

Under the facts stated in the bill, plaintiff is not entitled to have his name placed on the ballot as a candidate for Congress from the State at large.

The decree of this Court would be inefficacious.

Sec. 4, Art. 1, of the Constitution and the Act of Congress of 1911 are directory and not mandatory.

Congress, being the sole judge thereof, has construed the statute as not being mandatory but directory, and as an administrative matter, exclusively for the States.